

Item 8: Evidence of Claimant's Recovery

Item 12: Medical Expenses

(36)

Tentative Ruling

Re: **McGee v. Community Hospitals of Central California, et al.**
Superior Court Case No. 25CECG05321

Hearing Date: August 25, 2026 (Dept. 502)

Motion: by Defendants to Compel Arbitration

Tentative Ruling:

To deny without prejudice.

Explanation:

In moving to compel arbitration, defendants must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. The party opposing the motion must then prove by a preponderance of evidence that a ground for denial of the motion exists (e.g., fraud, unconscionability, etc.) (*Rosenthal v. Great Western Fin'l Securities Corp.* (1996) 14 Cal.4th 394, 413-414; *Hotels Nevada v. L.A. Pacific Ctr., Inc.* (2006) 144 Cal.App.4th 754, 758; *Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.)

There is a strong policy in favor of arbitration. (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.) Courts are to enforce arbitration agreements according to their terms. (*Ibid.*) In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law guide the court in making this determination. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 540-543.)

"First, the moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.' The moving party 'can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.' Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion. For this step, 'it is not necessary to follow the normal procedures of document authentication.' If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion." (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, citations omitted; see also *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219.)

"If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember

seeing the agreement, or that the party never signed or does not remember signing the agreement." (*Ibid*, citations omitted.)

"If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party." (*Id.* at pp. 165–166, citation omitted.)

Here, the arbitration agreement in question is a document executed through an electronic system called iCims. This electronic platform was purportedly used by defendants for every prospective employee during the hiring and orientation process. (Warwick Decl., ¶ 2.) The document has a section at the bottom for the employee to electronically sign by providing her name and checking a signature checkbox. (*Id.* at ¶ 11 and Ex. A thereto.) Below the checkbox reads: "checking the checkbox above is equivalent to a handwritten signature". (*Id.* at Ex. A.) A red check appears within the checkbox and next to it reads "Signature Angel McGee 4/6/2019 2:24 PM." (*Ibid.*)

With the moving papers, a declaration was submitted by Mary Warwick, the Director of Talent Acquisition. (Warwick Decl., ¶ 1.)² She has held that position for approximately five years and she manages the team who work with job candidates from the time of application, offer, and onboarding processing. (*Id.* at ¶¶ 1-2.) She indicates that she manages an electronic system called iCims, which is used during the hiring and orientation process. She indicates that all prospective employees are required to fill out an online application through iCims in order to be considered for employment. (*Id.* at ¶ 4.) Ms. Warwick indicates that new hire documents, including the Dispute Resolution Agreement, are presented to and electronically signed by prospective employees prior to the commencement of employment. (*Id.* at ¶ 2.) She asserts that all prospective employees are invited to create a profile using their email address and a self-selected password. Once the applicant is selected for employment, she is required to use the unique username and password she previously created to fill out the employment application in order to electronically sign employment documents, including arbitration agreements. (*Id.* at ¶¶ 5-7.) Ms. Warwick attests that the Dispute Resolution Agreement attached to her declaration was signed by plaintiff using her unique username and

² Plaintiff has objected to Ms. Warwick's declaration and the arbitration agreement attached as Exhibit A to the declaration on various grounds, including lack of personal knowledge, lack of foundation, hearsay and lack of authentication. She notes that Ms. Warwick admits that she did not become Director of Talent Acquisition until 2021, which is two years after plaintiff allegedly executed the agreement. Therefore, she contends that Ms. Warwick could not have personal knowledge of whether plaintiff executed the agreement when she was hired. While plaintiff's assertion is correct, Ms. Warwick is still able to testify as to the contents of defendant's electronic records, which purportedly includes the arbitration agreement, as a custodian of records under the business records exception to the hearsay rule. The court also agrees with defendants that Ms. Warwick has properly laid foundation to authenticate the document as a business record of defendant. However, for reasons explained below, Ms. Warwick has not properly authenticated that the signature appearing on the agreement was an act of plaintiff. Therefore, plaintiff's objections to Ms. Warwick's attestations regarding the electronic signature, Objection Nos. 1-3, are sustained, and the objections to the agreement attached as Exhibit A, Objection Nos. 4-6 are overruled.

password and that the agreement was pulled from electronic records maintained by defendants in its ordinary course of business. (*Id.* at ¶¶ 10-11 and Ex. A thereto.) She also indicates that the electronic signature on the agreement could have only been placed by using plaintiff's unique username and password. (*Id.* at ¶ 11.)

Plaintiff has provided her own declaration with the opposition. She asserts that she does not recognize the arbitration agreement, does not recall seeing the agreement, and does not recall signing or executing the agreement. (McGee Decl., ¶¶ 4, 5, 8.) She further attests that if provided with an option to opt-out of the arbitration agreement, she would have exercised that option. (*Id.* at ¶ 10.)

Here, defendants have met their initial burden of showing that there is an agreement to arbitrate by simply attaching to Ms. Warwick's declaration a copy of the arbitration agreement purporting to bear plaintiff's signature. Plaintiff has "likewise met her burden on the second step by filing an opposing declaration, saying she did not recall the agreement and would not have signed it if she had been aware of it..." (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 167.) "In the face of [the plaintiff's] failure to recall signing the [arbitration] agreement, [the defendant] had the burden of proving by a preponderance of the evidence that the electronic signature was authentic." (*Id.*, at pp. 167-168 citing *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846 (*Ruiz*).)

"[A]ny writing must be authenticated before the writing, or secondary evidence of its content, may be received in evidence. [Citations.]" (*Ruiz, supra*, 232 Cal.App.4th at p. 843, citations omitted.) "Authentication of a writing means (a) the introduction of evidence *sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is* or (b) the establishment of such facts by any other means provided by law." (*Ibid.*, italics in original, citations omitted.) "An electronic record or electronic signature is attributable to a person if it was the act of the person. The act of the person may be shown in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable." (*Ibid.*, citing Civ. Code, § 1633.9, subd. (a), italics omitted.)

"In *Ruiz*, the court denied enforcement of an arbitration agreement purportedly signed electronically by Ruiz, an employee. Ruiz declared that he 'did not recall signing any arbitration agreement,' and if he had been given such an agreement, he would not have signed it. [Citation.] The employer offered a declaration that explained how it disseminated the agreement and how employees electronically executed it, yet 'did not indicate whether or if so how [the employer] ascertained that Ruiz electronically signed, or was the person who electronically signed, ... the 2011 [arbitration] agreement.' [Citation.] Applying the Uniform Electronic Transactions Act (Civ. Code, § 1633.1 et seq.), the Fourth Appellate District held that the employer had not borne its burden of proving that the electronic signature was 'the act of' the employee. [Citation.]" (*Ilyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 756–757 citing *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842-845.)

There, the employer provided the declaration of its business manager, who "was 'required to be familiar with the generation and maintenance' of employee personnel records..." and "summarily asserted that Ruiz 'electronically signed' the 2011 agreement

'on or about September 21, 2011,' and that the same agreement was presented to 'all persons who seek or seek to maintain employment' with [the employer]." (*Ruiz, supra*, 232 Cal.App.4th at p. 839.) The business manager "did not explain how she arrived at that conclusion or inferred Ruiz was the person who electronically signed the 2011 agreement." (*Id.*, at p. 843.) Despite Ruiz's full name and date appearing on the signature and date lines of the 2011 agreement, and that the business manager apparently retrieved the proffered true and correct copy of the 2011 agreement from the employer's personnel records, it was "never explained how Ruiz's printed electronic signature, or the date and time printed next to the signature, came to be placed on the 2011 agreement. More specifically, [the business manager] did not explain how she ascertained that the electronic signature on the 2011 agreement was 'the act of Ruiz'. (Civ. Code, § 1633.9, subd. (a).)" (*Id.*, at pp. 843-844.) The court further found it insufficient that the business manager "explained in her reply declaration that the 2011 agreement was part of an employee acknowledgment form that 'is' presented to all ... employees as part of a series of changes to the company's employee handbook, and each employee is required to log into the company's HR system using his or her 'unique login ID and password,' to review and sign the employee acknowledgment form." (*Ibid.*)

Here, just as in *Ruiz*, defendants fail to establish that the electronic signature appearing on the arbitration agreement produced was "the act of plaintiff." No explanation is provided to show how plaintiff's purported electronic signature, or the date printed next to the signature, came to be placed on the subject arbitration agreement. Nor is an explanation presented to show how Ms. Warwick, who was not in her role as the Director of Talent Acquisition at the time the agreement was purportedly signed, ascertained that the electronic signature was that of plaintiff's. Notably, Ms. Warwick does not indicate whether she holds any belief as to whether plaintiff electronically signed the arbitration agreement.

Additionally, she asserts that she manages iCims, but does not explain how she has knowledge of how the electronic platform works. While Ms. Warwick indicates that the processes for the maintenance of user information constitutes confidential business information, there is no explanation of how documents signed in iCims are connected to defendant's electronic and backup records. There is no discussion of any review of the records in relation to iCims. Nor is there any indication that defendants used the iCims system when plaintiff started her employment with defendants. Ms. Warwick merely summarily attests that she oversaw the process of gathering the electronically-signed agreement, that the agreement was pulled from electronic and backup records maintained by defendants, and that plaintiff electronically signed the agreement, but she does not indicate that she verified that the document actually belonged to plaintiff. There is no indication of whether the document was pulled from plaintiff's employment records or personnel file.

Accordingly, Ms. Warwick's declaration provides insufficient information about how the electronic signature was obtained and insufficient information for the basis of the declarant's assertions that the electronic signature was an act of plaintiff. As such, the electronic signature has not been properly authenticated. Thus, defendants have not met their burden of showing the existence of an agreement to arbitrate.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: Img on 8-24-26
(Judge's initials) (Date)